

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-07

MARINE TRANSPORT LOGISTICS, INC.

COMPLAINANT

v.

CMA CGM (AMERICA) LLC

RESPONDENT

MOTION FOR EXTENSION OF TIME TO FILE RESPONSIVE PLEADINGS

Pursuant to 46 C.F.R. §§ 502.69 and 502.102, Respondent CMA CGM (America) LLC (“CMA CGM”) files this Motion for an Extension of Time and hereby respectfully requests to extend the time in which Respondent may file its responsive pleadings to Complainant’s Amended Complaint by 14 days, through November 6, 2019. Respondent CMA CGM states the following in support of this Motion:

1. On October 8, 2019 this Honorable Court denied Respondent’s Motion to Dismiss and granted Complainant’s motion to amend its complaint. Given the Court’s denial of its Motion to Dismiss, the Respondent respectfully requests additional time to evaluate the case at hand.
2. Complainant’s Amended Complaint raises new allegations for which Respondent, in order to respond to these new allegations in good faith, requires additional time to investigate and evaluate.

3. Counsel for Respondent CMA CGM has been traveling each week since the Court's Order was issued on October 8th and requires additional time to fully evaluate the case, in light of the Court's denial of Respondent's Motion to Dismiss, alongside her client.
4. Counsel for CMA CGM is in the process of engaging outside counsel, in light of the Court's Order denying Respondent's Motion to Dismiss. Additional time is needed to finalize retention of outside counsel, and to provide them with a complete background of the case.

WHEREFORE, based on the foregoing, Respondent CMA CGM respectfully requests that this Honorable Court grant Respondent's Motion for an Extension of Time and allow Respondent CMA CGM to file a responsive pleading to the Amended Complaint through and including November 6, 2019.

Respectfully submitted,



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Attorney for Respondent CMA CGM (America) LLC

CERTIFICATE OF SERVICE

I hereby certify that I have served a true and correct copy of the foregoing Respondent's Motion for an Extension of Time on the Complainant by sending a copy via electronic mail to Complainant's attorney at the following address:

Mr. Garry Pogil
112 West 34 Street, 18th Floor
New York, NY 10120



Draughn Arbona